

Module 9: Borders, Sovereignty, and Policy

Graduate Research Project

The Sovereignty–Rights Collision: A Migration Case Law Analysis

Overview

A legal research paper analyzing a line of cases on one doctrinal question — non-refoulement, detention, externalization, or expedited removal — across domestic and international law.

Aligned learning outcomes

- Evaluate legal tensions between sovereignty and rights (Grad 1)
- Interpret real-world cases (Grad 2)

Sample research questions

- How have courts resolved (or dodged) the conflict between border control powers and protection obligations in your chosen doctrine?
- Where do domestic rulings and international obligations (1951 Convention, ECHR, ICCPR) diverge?
- What is the trajectory of the doctrine, and what would principled reform look like?

Methods

Doctrinal legal analysis of 4–6 key cases plus treaty texts and scholarly commentary. Non-law students may use case summaries and secondary analyses with instructor guidance.

IRB / research ethics

Not required — public legal documents.

Deliverables

- 4,500-word legal analysis memo with a case-line map
- 10-minute moot presentation defending one side of the tension, then critiquing your own argument

Grading rubric

Each criterion is scored at one of four levels, then weighted as shown. The overall grade is the weighted combination of criterion scores. Instructors may adapt weights and descriptors to local requirements.

Criterion (weight)	Exemplary (A)	Proficient (B)	Developing (C)	Beginning (D–F)
Accuracy of legal analysis 35%	Evidence and accuracy are exemplary: accuracy of legal analysis is met with high-quality, correctly cited sources for every substantive claim; terms, facts, and frameworks are used precisely.	Evidence and accuracy are solid: accuracy of legal analysis is met for nearly all claims, with only minor sourcing gaps or imprecisions that do not affect conclusions.	Evidence and accuracy are uneven: accuracy of legal analysis is partly met — some claims lack support, sources are thin or misread, or terms are used loosely in ways that weaken conclusions.	Evidence and accuracy are deficient: accuracy of legal analysis is not met; key claims are unsupported or wrong, and errors undermine the work's conclusions.
Handling of the domestic/international interface 25%	Analysis is genuinely insightful: handling of the domestic/international interface goes beyond summary to produce non-obvious, well-defended conclusions; concepts are applied accurately, complexity is preserved, and counterpoints are engaged seriously.	Analysis is competent: handling of the domestic/international interface is achieved with clear reasoning and accurate use of course concepts, though conclusions stay near the expected.	Analysis is thin: handling of the domestic/international interface is attempted but leans on summary or assertion; concepts are named more than used, and complications are avoided.	Analysis is absent: handling of the domestic/international interface is not achieved; the work describes without analyzing or draws conclusions its own material does not support.
Argument and counterargument quality 25%	Analysis is genuinely insightful: argument and counterargument quality goes beyond summary to produce non-obvious, well-defended conclusions; concepts are applied accurately, complexity is preserved, and counterpoints are engaged seriously.	Analysis is competent: argument and counterargument quality is achieved with clear reasoning and accurate use of course concepts, though conclusions stay near the expected.	Analysis is thin: argument and counterargument quality is attempted but leans on summary or assertion; concepts are named more than used, and complications are avoided.	Analysis is absent: argument and counterargument quality is not achieved; the work describes without analyzing or draws conclusions its own material does not support.

Criterion (weight)	Exemplary (A)	Proficient (B)	Developing (C)	Beginning (D–F)
Citation and clarity 15%	Communication is publication-ready: citation and clarity is achieved with precise, well-organized prose, correct citation, and figures or formats that make the argument easier to grasp.	Communication is clear and professional: citation and clarity is achieved with minor lapses in polish, organization, or citation that never obscure meaning.	Communication is understandable but rough: citation and clarity is only partly achieved — disorganization, citation errors, or unclear figures make the reader work to follow the argument.	Communication impedes the work: citation and clarity is not achieved; errors, disorganization, or missing citations obscure the substance.